

VANCLEF v SUBARU OF AMERICA, INC, et al

25CV47968

DEFENDANT SUBARU'S DEMURRER

This case involves a dispute over a vehicle warranty dispute between Jordan E. Vanclef ("Plaintiff") and Subaru of America, Inc., ("Subaru"), Subaru of Sonora ("Sonora") and various John Does. Now before the Court is Subaru's demurrer to the Plaintiff's sixth cause of action for fraud.

I. Facts

On or about March 8, 2024, Plaintiff entered into a warranty contract with Subaru regarding a 2023 Subaru WRX, vehicle identification number JF1VBAF64P9819073 (hereafter "Vehicle"), which was manufactured and/or distributed by Subaru. (Complaint ¶ 7.) The warranty was broad and covered "bumper to bumper." (*Id.* ¶ 8, Ex. A.) Plaintiff has primarily used Vehicle for personal use. (*Id.* ¶ 9.) Within the applicable express warranty period defects and nonconformities to warranty manifested, including but not limited to, engine defects, transmission defects, and electrical defects. (*Id.* ¶ 12.)

Plaintiff alleges that Subaru knew, since prior to Plaintiff purchasing Vehicle, that the that the 2.4L engine and/or its related components installed in Vehicle have one or more defects that can result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine (the "Engine Defect"). (Complaint ¶¶ 53, 59.) Plaintiff alleges that the Engine Defect is a safety concern and renders the vehicle undriveable (*Id.* ¶ 59.) and vehicle is now of *de minimus* value and seeks damages.

II. Legal Standard

"A demurrer tests the sufficiency of a complaint and admits all facts properly pleaded." (*Setliff v. E.I.Du Pont de Nemours & Co.* (1995) 32 Cal. App. 4th 1525, 1533.) The court

assumes the truth of the allegations asserted but does not assume the truth of “contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal. App. 4th 242, 247.) The court can further look at those facts that “reasonably can be inferred from those expressly pleaded, and matters of which judicial notice has been taken.” (*Fremont Indemnity Co.*, 148 Cal. App. 4th 100, 111.) In considering the demurrer, the court must accept the allegations set forth in the complaint as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

III. Discussion

Subaru demurs to the Plaintiff’s Sixth Cause of Action for Fraudulent Inducement-Concealment on the grounds that the cause of action does not meet the heightened pleading requirements for fraud.

To establish a claim for fraudulent concealment, a plaintiff must plead and prove the following elements: (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) intent to defraud by intentionally concealing or suppressing the fact; (4) the plaintiff’s lack of knowledge of the concealed or suppressed fact and resulting reliance; and (5) damages sustained as a direct result of the concealment or suppression. (*Hambridge v. Healthcare Partners Medical Group, Inc.* (2015) 238 Cal.App.4th 124, 162, quoting *Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 606.)

A cause of action for fraud based on nondisclosure or concealment must also establish that the defendant had a legal duty to disclose the withheld facts. (*OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 845.) Absent a fiduciary relationship between the parties, courts recognize three circumstances where nondisclosure or concealment may constitute actionable fraud: (1) where the defendant possesses exclusive knowledge of material facts unknown to the plaintiff; (2) where the defendant actively conceals a material fact from the plaintiff; and (3) where the defendant makes partial representations while suppressing other material facts. (*Bigler-Engler v. Berg, Inc.* (2017) 7 Cal.App.5th 276, 311, quoting *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336.)

Here, Plaintiff alleges that Subaru concealed the known Engine Defect from Plaintiff and other consumers. (Complaint ¶¶ 52, 58-59.) Plaintiff alleges that Subaru had a duty to disclose this fact because it had superior knowledge of the fact due to “pre-release testing data; early consumer complaints... dealership repair orders; testing conducted in response to those complaints; and other internal sources of information possessed exclusively by...” Subaru. (*Id.* ¶ 57.) Plaintiff alleges that in failing to inform Plaintiff of

the Engine Defect, Subaru intended to mislead Plaintiff into believing that Vehicle was drivable and safe. Plaintiff alleges he lacked any knowledge of the Engine Defect and relied on the representations made in Defendant's materials (which did not disclose the Engine Defect) in purchasing Vehicle. (*Id.* ¶¶ 69, 71.) Finally, Plaintiff alleges that he suffered damages as a result of the concealment.

Subaru, however, argues that the claim is not pled with specificity, including the date, time, and place of the concealment. However, "less specificity is required where the defendant necessarily possesses the information." (*Bajaras v. Ford Motor Co.* 2025 Cal.Super.LEXIS 1185, *3-4, citing *Committee on Children's Television, Inc. v. General Foods, Inc.* (1983) 35 Cal.3d. 197, 216-217.) Further, "it is not practical to require allegations of specific facts showing how, when, and by what means something did not happen." (*Id.*) The Court finds the Plaintiff has adequately pled the elements of fraudulent concealment with enough particularity at this stage.

Accordingly, and for all the foregoing reasons, the Subaru's demurrer is **OVERRULED**.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling.

GREENROOT v WEBSTER

25CV48032

DEFENDANTS WEBSTER'S MOTION TO COMPEL RESPONSE TO RFPD SET TWO

This case involves a contract dispute concerning real property brought by Lorna Greenroot ("Plaintiff") against Pennelope Webster ("Pennelope")⁴, Randy Webster ("Randy") (collectively "Websters") and Gregory Stanley ("Stanley.") Now before the Court is a motion to compel further responses to Request for Production of Documents, Set Two (RPD Set Two) brought by Pennelope against Plaintiff.

I. Relevant Procedural Background

On May 20, 2025, Pennelope served an initial set of discovery on Plaintiff which became the subject of a previous set of motions to compel. (See Aug 29, 2025, Ruling.) As part of the Court's Ruling, Plaintiff was ordered to provide initial responses to Special Interrogatories, Set One ("SROG Set One") and Requests for Production of Documents, Set one ("RPD Set One.") At issue in that matter were sixty-two (62) RPDs to which Plaintiff had not responded. Plaintiff was ordered to provide the discovery responses on or before September 19, 2025.

Two days after the first sets of discovery were sent to Plaintiff, Pennelope served RPD, Set Two on Plaintiff. (Declaration of Michael Fluetsch ("Fluetsch Decl.") ¶ 3, Ex. A.) Plaintiff responded on June 23, 2025. Plaintiff's responses to RPD, Set Two, were comprised primarily of boiler plate objections, were not verified, and did not result in the production of any documents. On June 27, 2025, Pennelope's counsel attempted to call Plaintiff but was unable to reach her. Thereafter, counsel sent Plaintiff a "meet and confer" letter. (Fluetsch Decl. ¶ 7, Ex. C.)

⁴ Given the common surnames, the Court may refer to some parties by their first names. No disrespect is intended.